

FORM SUMMARY

Name of Form: **Petition to Expunge Criminal Court Record of Conviction – Non-Probation/Non-Incarceration**

participant/case info review zone

Form Number: **CR 266**

Statutory Reference: §973.015, Wisconsin Statutes

Benchbook Reference: CR 37-4

Purpose of Form: To provide a standardized form for requesting expunction of the court record of an adult conviction in non-probation/non-incarceration cases.

Who Completes It: The party seeking the expungement.

Distribution of Form: Original is filed with the court. Copies to District Attorney. The person requesting the expungement may also wish to retain a copy.

Accompanying Forms: Generally none.

New Form/Modification: Modified; last update 11/19.

Modifications: Added remote notary statement pursuant to 2019 WI Act 125.

Comments: Based on the Hemp decision, the form was changed to address the non-probation/non-incarceration cases only. DOC has created a new form (DOC-2678), Certificate of Discharge and Satisfaction of Probation Conditions for Expungement to trigger expunction in those case types.

2009 Wisconsin Act 28 expanded the criteria for requesting expunction of an adult conviction to include Class H and Class I felonies. Act 28 makes expunction mandatory in invasion of privacy cases (voyeurism) under §942.08(2)(b), (c), or (d) if the defendant was under age 18 on the date of the offense.

About this Form: This form is the product of the Wisconsin Records Management Committee, a committee of the Director of State Court's Office and a mandate of the Wisconsin Judicial Conference.

If you have additional information that does not change the meaning of the form, attach it on a separate page. The form itself shall not be altered.

signature/date review zone